



Road Traffic (Driving Licences) Act 1983

1983 CHAPTER 43

An Act to make provision about the granting, without tests of competence to drive, of driving licences to certain persons who are resident in Great Britain and are or have been authorised to drive under the law in force in places outside Great Britain, and for connected purposes. [13th May 1983]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section 110 of the Road Traffic Act 1972 (interpretation of Part III) shall be renumbered as subsection (1) of that section and in that provision as so renumbered after the definition of “disqualified” there shall be inserted the following definition—

Exchangeable licences to drive motor vehicles.
1972 c. 20.

“ ‘exchangeable licence’ means a Community licence or a document which would be a Community licence if—

(a) Gibraltar ; and

(b) each country or territory within this paragraph by virtue of an order under subsection (2) below,

were or formed part of a member State other than the United Kingdom ;”.

(2) After that provision as so renumbered there shall be inserted the following subsections—

“ (2) If the Secretary of State is satisfied that satisfactory provision for the granting of licences to drive motor vehicles is made by the law of a country or territory which neither is nor forms part of a member State, he may by order made by statutory instrument designate that country or territory as a country or territory within paragraph (b) of the definition of ‘exchangeable licence’ in subsection (1) above.

(3) Before making any order under subsection (2) above, the Secretary of State shall consult with such representative organisations as he thinks fit.”

(3) Part III of that Act shall be further amended as follows—

(a) in sections 84(4) and 85 for the words “ a Community licence ”, wherever they occur, there shall be substituted the words “ an exchangeable licence ”;

(b) in section 85(1) after the words “ resident in ” there shall be inserted the words “ Great Britain or (where the exchangeable licence is a Community licence) ”;

(c) in section 85(6) after the words “ member State ” there shall be inserted the words “, country or territory ”; and

(d) in section 88(1) for the words “ Community licence ” there shall be substituted the words “ exchangeable licence ”.

Exchange-
able licences
to drive
heavy goods
vehicles or
public
service
vehicles.
1972 c. 20.

2.—(1) In section 124 of the Road Traffic Act 1972 (interpretation of Part IV) after the definition of “ Community licence ” there shall be inserted the following definition—

“ ‘ exchangeable licence ’ means a Community licence or a document which would be a Community licence if Gibraltar formed part of a member State other than the United Kingdom ; ”.

(2) In section 114 of that Act—

(a) in subsections (1) and (1C) for the words “ a Community licence ”, wherever they occur, there shall be substituted the words “ an exchangeable licence ”; and

(b) in subsection (1A) for the words “ Community licence ”, in both places where they occur, there shall be substituted the words “ exchangeable licence ”, after the words “ resident in ”, in both places where they occur, there shall be inserted the words “ Great Britain or (where the exchangeable licence is or was a Community licence) ” and after the words “ member State ” there shall be inserted the words “ or territory ”.

(3) In Regulation 6 of the Driving Licences (Community Driving Licence) Regulations 1982—

- (a) in paragraph (1) for the words “ a Community licence ”, in both places where they occur, there shall be substituted the words “ an exchangeable licence ” ;
- (b) in paragraph (2) for the words “ Community licence ”, in both places where they occur, there shall be substituted the words “ exchangeable licence ”, after the words “ resident in ”, in both places where they occur, there shall be inserted the words “ Great Britain or (where the exchangeable licence is or was a Community licence) ” and after the words “ member State ” there shall be inserted the words “ or territory ” ;
- (c) in paragraph (3) for the words “ a Community licence ” there shall be substituted the words “ an exchangeable licence ” and after the words “ member State ” there shall be inserted the words “ or territory ” ; and
- (d) in paragraph (4) in the definition of “ Community licence ” for the words “ has the same meaning as in Part III ” there shall be substituted the words “ and ‘ exchangeable licence ’ have the same meanings as in Part IV ”.

3. After section 23 of the Public Passenger Vehicles Act 1981 there shall be inserted the following section—

“Northern
Ireland
drivers’
licences.

23A.—(1) A licensing authority may, notwithstanding any driving test condition imposed by regulations, grant a licence to an applicant to drive a public service vehicle of any type if the authority is satisfied that the applicant has, within the period of five years ending on the date of the coming into force of the licence, held a licence granted under the law of Northern Ireland to drive a public service vehicle of that type.

Northern
Ireland
licences to
drive public
service
vehicles.
1981 c. 14.

(2) In this section—

‘ driving test condition ’, in relation to an applicant for a licence to drive a public service vehicle of any type, means a condition as to the provision of facilities for, or the passing of, a practical test of his ability to drive a public service vehicle of that type ;

‘ licensing authority ’ shall be construed in accordance with section 22(2) of this Act.”

Short title,
commence-
ment and
extent.

4.—(1) This Act may be cited as the Road Traffic (Driving Licences) Act 1983.

(2) This Act shall come into force at the end of the period of two months beginning with the day on which it is passed.

(3) This Act does not extend to Northern Ireland.